
Journal

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Court

LAHORE HIGH COURT

Date

2012-01-20

Appeal No.

WRIT PETITIONS NOS. 585 AND 1439 OF 2009/BWP

Judge

ABDUS SAL TAR ASGHAR

Parties

MST. SHAISTA SHAHZAD AND ANOTHER (PETITIONERS) VERSUS ADDITIONAL DISTRICT JUDGE AND OTHERS RESPONDENTS

Lawyers

HAMEED-UZ-ZAMAN FOR PETITIONERS. ABDUL JALEEL KHAN FOR RESPONDENTS NOS. 3-4.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5 AND SCHEDULE
CONSTITUTION OF PAKISTAN - ARTICLE 199

Judgment

ABDUS SATTAR ASGHAR, J.-By virtue of this single order I intend to dispose of the instant writ petition as well as Writ Petition No. 1439 of 2009/BWP "MohsinRaza v. Shaista Shahzad etc." both arising out of the judgments dated 4-7-2008 and 23-12-2008 passed by the learned Judge Family Court and the learned Additional District Judge, Bahawalpur, respectively.

2. Brief facts leading to these petitions are that Nikah of Shaista-Shahzad (to be called hereinafter as petitioner) and Mohsin Raza (to be called hereinafter as respondent) was solemnized on 25-1-2005 in lieu of dower amount of Rs.300,000 paid at the time of Nikah, as revealed through Columns Nos. 13 and 14 of the Nikahnama. Columns Nos. 15 and 16 of the Nikahnama reveal that golden ornaments weighing 10 tolas and a house situated in Mohallah Aamkhas Bahawalpur valuing Rs.200,000 were to be paid at the time of Rukhsati. Column No. 19 of the Nikahnama contains a condition that the husband will neither contract second marriage nor he will divorce the petitioner otherwise he will pay a sum of Rs.200,000 to the petitioner apart from dower. Record further reveals that Rukhsati was never held and this marriage was not consummated up till 11-8-2007 when the respondent divorced the petitioner. Consequently, petitioner lodged a suit for recovery of dower as well as additional amount of Rs.200,000. She also instituted another suit for recovery of maintenance allowance from the date of marriage till the date of divorce as well as of Iddat period. Both the suits were resisted by the respondent with the contention that the dower amount of Rs.300,000 had been paid to the petitioner at the time of Nikah; that since Rukhsati never took place, therefore, she is not entitled to the deferred dower; that parents of the petitioner themselves refused to give Rukhsati and demanded for divorce whereupon he divorced her on 14-5-2007 through Conciliation Council which became effective on 11-8-2007 vide certificate issued by the Council, therefore, she is not entitled to claim any maintenance allowance from him.

3. Record further reveals that the learned Judge Family Court consolidated both the suits, framed issues on. the basis of divergent pleadings of the parties and after recording their evidence dismissed the suit for recovery of dower, however, her claim for recovery of Rs.200,000 as additional dower was decreed in her favour and against the respondent. Her suit for recovery of maintenance allowance was decreed in her favour against the respondent at the rate of Rs. 2,000 per month from the date of Nikah i.e. 25-1-2005 till the date of divorce i.e. 14-5-2007 as well as for Iddat period of three months through a consolidated judgment dated 4-7-2008.

4. Both the parties being aggrieved of the impugned judgment and decree dated 4-7-2008 passed by the learned Judge Family Court preferred separate appeals before the learned Additional District Judge, Bahawalpur. The learned Additional District Judge after providing opportunity of hearing to the parties through a consolidated judgment dated 23-12-2008 partly allowed the appeal lodged by the respondent and dismissed the petitioner's suit for recovery of dower as well as additional dower of Rs.200,000. By virtue of the same judgment the learned Additional District Judge also dismissed the appeal of the respondent against the decree for maintenance allowance passed in favour of the petitioner.

5. Both the parties being aggrieved of the impugned judgments and decrees passed by the learned Courts below have invoked the constitutional jurisdiction of this Court through the aforementioned writ petitions, alleging that the said impugned judgments are against law and facts, without lawful authority, untenable in the eye of law and liable to be set aside.

6. It is argued by the learned counsel for the petitioner that she was always willing to join the respondent as his lawfully wedded wife to perform her marital obligations, whereas the respondent himself delayed the ceremony of Rukhsati on one pretext or the other and ultimately

divorced her, therefore, she is entitled to the dower fixed at the time of Nikah as well as additional sum of Rs.200,000 which he is bound to pay on account of divorce at his own accord in terms of conditions agreed between the spouses, besides maintenance allowance, duly incorporated in the Nikahnama. He has also relied upon Muhammad Aslam v. Mst. Fateh Khatoon (1969 SCMR 818), Nasrullah v. District Judge, Mianwali and 2 others (PLD 2004 Lahore 588) and Muhammad Masood Abbasi v. Mst. Mamona Abbasi (2004 YLR 482) [Lahore].

7. On the other hand, learned counsel for the respondent has argued that dower fixed to the tune of Rs.300,000 at the time of Nikah had been promptly paid as reveals through entries in Columns, Nos. 13 and 14 of the Nikahnama; that the petitioner is not entitled to the deferred dower as the marriage was never consummated. He added that condition of additional amount of Rs.200,000 mentioned in Column No. 19 of the Nikahnama in the event of divorcees neither enforceable nor the Family Court has got the jurisdiction to pass any decree in this regard. In support of his arguments, he has relied upon Muhammad Bashir Ali Siddiqui v. Mst. Sarwar Jahan Begum and another (2008 SCMR 186), Muhammad, Amjad v. Azra Bibi and 2 others (2010 YLR 423) [Lahore] Muhammad Yaqoob v. Mst. Siani Bibi alias Shamma and 2 others (2010 YLR 2466 [Lahore] and Syed Mukhtar Hussain Shah v. Mst. Saba Imtiaz and others (PLD 2011 SC 260).

8. I have given patient hearing to the learned counsel for the parties and perused the record.

9. At the outset, I take an opportunity to reproduce the dictums laid down in the afore-noted citations relied upon by the learned counsel for the parties.

10. In the case of Muhammad Aslam (1969 SCMR 818), Mst. Fateh Khatoon respondent had filed a suit for recovery of Rs.2,000 as damages for breach of contract executed at the time of marriage including a clause that if Muhammad Aslam violates any of the terms stated in the agreement he will pay Rs.2,000 as damages. Subsequently he contracted a second marriage, turned out his first wife from his house and later on divorced her. The main contention of Muhammad Aslam was that the Condition mentioned in the agreement founded against section 23 of the Contract Act and as such the plaintiff was not entitled to claim any damages for breach of the said contract. The learned trial Court decreed her suit which was upheld up to the second appellate court. Muhammad Aslam defendant sought special leave to appeal before the Hon'ble Supreme Court. The apex Court dismissed the petition for special leave to appeal with the following findings.

"The learned Single Judge of the High Court has, in our opinion, rightly come to the conclusion that at least some of the conditions laid down in the agreement were enforceable in law and as such the plaintiff was entitled to claim a reasonable compensation for breach of those conditions of the agreement. The learned Single Judge has further found that the defendant had not paid the agreed amount of Rs.50 per month as maintenance for about nine years. In these circumstances, it cannot be said that the amount of Rs.2,000 which was awarded as damages, was excessive or unconscionable. We, therefore, see no ground for interference with the judgment and decree of the High Court."

11. In the case of Nasrullah (PLD 2004 Lahore 588), wife lodged a suit for recovery of Rs.200,000 under the terms of Nikahnama. as compensation for divorce pronounced by her husband Nasrullah without any justification. The suit was resisted on the plea that Family Court lacks jurisdiction to adjudicate upon the matter. The learned trial Court dismissed the suit with regard to the condition. On appeal, learned District Judge granted a decree of Rs.200,000 in favour of the wife, which was impugned before this Court through writ petition under Article 199 of the Constitution. The writ was dismissed in limine with the following observations:-

"Now I find that Schedule to the Family Courts Act, 1964 was amended on 1-10-2002 and following Item No.9 was added: "9. Personal property and belonging of a wife". Now the said condition by all means vests the respondent lady with a right to bring an action against the petitioner to claim the said amount 1 upon proof that she was divorced without any reason attributable to her. This being so, the respondent lady is vested with a right of action or what is termed as "actionable claim" in the Transfer of Property Act, 1882. Now the moment the said condition becomes operative the petitioner became indebted to the respondent in the said amount. Even if such debt or beneficial interest so accruing is conditional or contingent, falls within the meaning of actionable claim which is a property and transferable as such. In my humble opinion claim of respondent wife-to the said amount accruing to her upon an unjustified divorce by all means a property and clearly falls within Item. No.9 of the Schedule read with section 5 of Family Courts Act, 1964.

In view of the said clear statutory provisions it cannot be said that the learned District Judge acted without lawful authority while decreeing the said claim of respondent No.3. The writ petition is dismissed in limine."

12. In the case of Muhammad Masood Abbasi (2004 YLR 482), it was held as follows:~

Form of Nikahnama is prescribed- under the Family Laws Ordinance and is therefore, indicative of the fact that the relevant law treats those columns as lawful. Column No. 19 of Nikahnama, relating to any restriction imposed on the husband's right of divorce, with a view to safeguard the interest of the wife, cannot be therefore deemed as unlawful. It is of no legal significance or consequence if the said condition/restriction was mentioned in Column No. 18 instead of Column No. 19 of the Nikahnama Exh.P.A. .

(10) It is true that restriction on husband's right to divorce the wife is not provided under the Family Laws or rules framed there under but it is also true that there is no provision in the aforesaid laws or rules that such restriction is void.

(11) Under Islamic Law marriage is a civil contract and the husband has a right to divorce his wife whenever he desires without assigning any cause.

(12) To preserve the marriage contract and to safeguard the interest, of the wife against its unjustified termination by the husband, if any, stipulation is made in the Nikahnama whereby the husband agrees to pay some damages in the event of divorcing the wife without any just cause, such stipulation is neither against injunction of Islam nor against public policy. It is true that Islam allows husband to divorce his wife without assigning any cause but it is equally true that Islam also approves preservation and protection of marriage and does not approve unjustified exercise of this right by the husband which certainly leads to innumerable social problems for the divorcee and the children which consequently has an adverse impact on the society as well. By imposition of such condition, right of divorce of the husband is neither taken away nor is restricted in the sense that he can still divorce the wife in spite of the condition but in case he divorces her without any reasonable cause or justification he would be liable to pay the agreed amount as damages so that the destitute divorcee and children may make some arrangement for their food and shelter for the time being.

(13) Condition for payment of damages to the wife in the event of divorcing her without any cause or justification is not against public policy but is rather in conformity with the same as it discourages unjustified divorces which result in broken homes, and endless social and economic problems for the divorcee, children and the society as well.

(20) Right of divorce was exercised by the petitioner, it was therefore, for him to show reasonable and just cause for exercising that right, in order to escape the liability of damages. Nothing was produced on record by the petitioner to prove that he had divorced the respondent on account of some just and reasonable cause. He was therefore, rightly held liable under the condition contained in Column No. 18 of the Nikahnama.

(25) A perusal of the impugned judgment shows that it is entirely reasonable, conclusions drawn are based on evidence, are supported by plausible reasoning and the judgment does not suffer from any jurisdictional infirmity. It is therefore, not open to interference in revisional jurisdiction.

(26) Resultantly finding no merit in this Civil Revision, it is accordingly dismissed in limine.

13. In the case of Muhammad Bashir Ali Siddiqui (2008 SCMR 186), the Hon'ble Supreme Court observed as under:-

Contention raised on behalf of the petitioner is that learned Family Judge as well as the learned Judge of Sindh High Court failed to take into account paragraph 17 of the Nikahnama, the provisions of which have already been mentioned above. According to him it was incumbent upon the family Court to award Rs.2,50,000 while granting decree by way of Khula in favour of petitioner. When confronted with the question as to whether parties could place restriction on their respective rights given to them by Shariat Law, Mr. Akhlaq Ahmed Siddiqui was unable to advance any plausible ground. His only contention was that such condition was embodied in the Nikahnama by way of safety and for prolongation of marriage contract, as it would deter both the parties from bringing an end to the marriage contract. This contention to say the least is absolutely frivolous as it is against the basic principle of law which require the parties to remain in marital ties in a peaceful and tranquil atmosphere and are not required to be bound by stringent conditions to remain in marriage bond.

(4) This petition is absolutely without any substance and is dismissed. Leave refused.

14. In the case of Muhammad Amjad (2010 YLR 423) [Lahore], this Court observed as under:-

The issue involved in the case by now has been settled by this Court. The matter regarding the damages envisaged in Column No. 17 of the Nikahnama is not amenable to the jurisdiction of the Family Judge. The matter can only be pursued before the Civil Court of general jurisdiction.

The writ petition is, therefore, accepted and the impugned judgments and decrees, passed by the learned lower Courts, are hereby set aside." 15. Before proceeding further it may be useful to remind that according to Mohammedan Law Nikah is not a Sacramento but a civil contract between a Muslim man and woman which is entered into for procreation and legalization of children and the spouses after consenting it are bound to respect it and to live within the limits of Allah. The contract of Nikah under the Mohammedan Law may be dissolved by the husband at his will without any intervention of a Court or by mutual consent of the husband and wife without intervention of a Court or by a judicial decree at the suit of husband or wife. In the Mohammedan Law a wife cannot divorce herself from her husband without his consent except under a contract whether made before or after marriage.

16. In view of the above legal position, it is understandable that if a Mohammedan wife can lawfully stipulates for a divorce under a contract then she can also stipulate for future claim in case of divorce apart from the dower fixed at the time of Nikah. Any such stipulation, therefore, cannot be termed as against public policy of the Mohammedan Law. Any claim on the basis of

such stipulation arising out of the civil liability can be safely termed as "actionable claim". Any right within the meaning of "actionable claim" is prima facie alien to the "personal property and belonging of the wife" incorporated in Entry No.9 of Schedule II to Section 5 of the Family Courts Act, 1964.

17. The controversy between the parties as to whether such sort of claim falls within the meaning of personal property and belonging of the wife" enumerated at Serial No.9 of Schedule II to section 5 of the Family Courts Act, 1964, has already been dealt with by this Court in the case of Muhammad Akram v. Mst. "Hajra Bibi and 2 others (PLD 2007 Lahore 515). The relevant extract whereof reads below:-

"As regards the question, whether the suit is competent before the Family Court, it is the case of respondent No.I, and also held by the learned Additional District Judge that the matter falls within the Entry No.9 of the Schedule to section 5, i.e. "personal property and belonging of the wife". I feel amazed to note as to how the amount of Rs. 1,00,000 allegedly payable by the petitioner on account of the divorce or bad relations between the parties, is the 'personal property or belonging of respondent No.I, so as' to bring the case within the jurisdiction of the Family Court. Such personal property or belonging referred to in Entry No.9, in my considered view, is a residuary provision, which enables the wife to recover through the process of the Family Courts Act, 1964, whatever property she has acquired during the subsistence of the marriage, which is not the part of her dowry, through her own independent means or even through the means provided by the husband, such as her clothes, ornaments and items of personal use and nature, this may also include anything which has been gifted to the wife by the husband or any of his or her relatives or the friends; such property and belonging may be the one acquired by the wife out of the money given to her by the husband, her saving from household allowance, or pocket money, from the money provided by her parents and relatives. But definitely the aforesaid entry does not cover any amount which is not yet the property of the wife and she only has a claim to recover from the husband on the basis of any special condition incorporated in the Nikahnama. I am not convinced by the argument that the amount in question is covered under the rules of actionable claims as envisaged by section 130 of the Transfer of Property Act, 1882. The term "actionable claim" in general means, a claim for which an action will lie, furnishing a legal ground for an action and according to section 3 of the Transfer of Property Act, a claim towards a debt. On account of both the meanings such claim cannot be equated as a "personal property and belonging of the wife". Resultantly, in my considered view, the family Court has no jurisdiction in the matter and the suit in this behalf before the said Court was not competent."

18. At. this juncture, it is pertinent to mention, that the view propounded by this Court in the case of Muhammad Akram (supra) being divergent to the one postulated in the case of Nasrullah (supra) has been thoroughly examined by the Hon'ble Supreme Court in the case of Syed Mukhtar Hussain Shah v. Mst. Saba Imtiaz and others (PLD 2011 SC 260). The apex Court after examining the proposition from various angles and dimensions, concluded that the interpretation adopted by this Court in the case of Muhammad Akram (supra) is the. correct explication of law. The relevant extract of the dictum laid down by the Hon'ble Supreme Court in the case of Mukhtar Hussain Shah (supra) reads below:-

"The definition of "actionable claim" in the TPA is strictly and exclusively relatable to the operative provisions of Chapter VIII of the Act, which by virtue of sections 130 to 137 thereof inter alia, prescribes the requirements and the broad mechanism for the transfer and the assignment of the "actionable claims" so defined in section 3. It has no application beyond the Act even if any general concept emerges on, account of the expression, it is restricted to the law it forms part and cannot be stretched to apply to any other law of the land, including the Family Courts Act, 1964, thus the interpretation of entry No.9 *ibid* as provided by Muhammad Akram v. Mst. Hajra

Bibi and 2 others (supra) is the correct explication of law, which is hereby approved. However adding thereto, it may be held that if the ratio of Nasrullah dictum (supra) which is entirely and solely founded on the noted concept/definition is taken to be correct, than a suit for Specific Performance, declaratory suits of any nature, or any other civil legislation between a wife and husband shall be amenable to the special jurisdiction of the family Court, which is not intent of the law. Because according to the literal approach of reading a statute, the statute has to be read literally by giving the words used therein, ordinary, natural and grammatical meaning. Besides, the addition and subtraction of a word in a statute is not justified, except where for the interpretation thereof the principle of reading in and reading down may be pressed into service in certain cases; thus when in Entry No.9 'actionable claim' has not been provided by the legislature, it shall be improper and shall impinge upon the legislative intent and the rules of interpretation to add this expression to the clause/entry.

19. As a sequel to the above, it is settled now that the Family Court has no jurisdiction to entertain the petitioner's suit for recovery of conditional amount of Rs.200,000 as incorporated in Column No. 19 of the Nikahnama (Exh.P.1) between the parties. Therefore, learned appellate Court- has rightly set aside the findings of the learned Family Court lacking jurisdiction in this regard and does not call for interference by invoking constitutional jurisdiction of this Court.

20. As regards petitioner's claim for dower amount of Rs.300,000 mentioned in Column No: 13 of the Nikahnama (Exh.P.1), suffice to say that in the same column as well as in Column No. 14 it is categorically mentioned that the same has been paid to the petitioner at the time of Nikah.

Petitioner in her cross-examination has admitted that she has never questioned the entries of Nikahnama before any forum till date. Admittedly, Nikahnama (Bxh.P.1) is duly signed by her, therefore, at this stage her plea that dower amount Rs.300,000 was not paid to her at the time of Nikah is devoid of any force. The learned Judge Family Court as well as the learned appellate Court, therefore, have rightly dismissed her claim of dower amount of Rs.300,000.

21. Simultaneously, respondent's plea that petitioner is not entitled to claim any maintenance, allowance is also devoid of any force. A valid Nikah under the Mohammedan Law confers upon the wife the right of maintenance and imposes on her the obligation to be faithful and obedient to her husband for performance of her marital duties. It is evident on the record that after recitation of Nikah petitioner never refused to effect union and perform her marital obligations rather respondent himself refused to obtain Rukhsati on the pretext that he has to complete his studies and ultimately divorced the petitioner on 14-5-2007. Therefore, keeping in view the financial status of the respondent the trial Court has rightly decreed the petitioner's suit for maintenance allowance from the date of Nikah i.e. 25-1-2005 till the date of divorce i.e. 14-5-2007 as well as for Iddat period.

22. For the above discussion and reasons, I do not find any factual or legal infirmity in the impugned judgment and decree dated 23-12-2008 passed by the learned Additional District Judge, therefore, the parties have no case at all to invoke the constitutional jurisdiction of this Court to impugn the said judgment.

23. As a sequel to the above both the above noted writ petitions being devoid of any merit are dismissed

Petition dismissed.

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